

9. 9:00 AM CASE NUMBER: C25-02471

CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP

***HEARING ON MOTION IN RE: ORDER COMPELLING INDEPENDENT FORENSIC ACCOUNTING AND STAYING ENFORCEMENT PENDING REVIEW**

FILED BY:

TENTATIVE RULING:

Plaintiff Kranti Kapre ("Plaintiff") filed a Motion for Order Compelling Independent Forensic Accounting and Staying Enforcement Pending Review on December 15, 2025 (the "Motion"). The Motion was set for hearing on May 4, 2026.

Background

Defendant Clear Recon Corp ("Defendant") appeared in this action by way of a Demurrer filed February 17, 2026 and set for hearing on June 29, 2026.

No Proof of Service was filed with the moving papers. Nor does not appear that Defendant was served with the Motion after Defendant's appearance in the case.

Analysis

Plaintiff has failed to properly serve the Motion on the opposing party. For that reason alone, the Motion is procedurally defective.

Even if it had been properly served, no basis has been shown for the Court to order a "court-supervised forensic accounting." There is no cause of action pled in the operative complaint for an accounting nor any prayer for such relief in that pleading. No other authority has been articulated for the right to a "court-supervised forensic accounting" at this stage of the proceedings.

The other relief sought is unclear and no basis has been shown for such relief. While difficult to parse, the Motion also appears to reference seeking to amend the complaint. The Motion is procedurally defective to the extent it is intended to be some sort of request for leave to amend.

To the extent judicial notice was requested in connection with the Motion, it is DENIED.

Disposition

The Court finds and orders as follows:

1. The Motion is DENIED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-02705

CASE NAME: TRACY PITTS VS. CONTRA COSTA COUNTY

***HEARING ON MOTION IN RE: SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL CCP 128.7**

FILED BY: CONTRA COSTA COUNTY

TENTATIVE RULING:

Defendant Contra Costa County ("Defendant") brings a motion for sanctions ("Motion") pursuant to Code of Civil Procedure section 128.7, against Plaintiff Tracy Pitts ("Pitts") and Plaintiff's counsel of record, Nicolis Peters ("Counsel" together with Pitts, "Plaintiff"), for the amount of \$5,250.